



Code: BBAA
Adopted: 7/21/21

Individual Board Member's Authority and Responsibilities

An individual HCCS Board member exercises the authority and responsibility of the board member's position when the HCCS Board is in legal session only.

A HCCS Board member has the authority to act in the name of the HCCS Board when authorized by a specific Board motion. The affirmative vote of the majority of the Board members present is required to transact any business. The act of a majority of the Board members present in person at a meeting at which a quorum is present shall be the act of the Board of directors, unless the act of a greater number is required by law or by the HCCS bylaws.

A HCCS Board member has the right to express personal opinions. When expressing such opinions in public, the Board member must clearly identify the opinions as their own.

Members will be knowledgeable of information requested through Board action, supplied by the administrator/principal, gained through attendance at HCCS activities and through professional HCCS Board activities.

Members of the HCCS Board will adhere to the following in carrying out the responsibilities of membership:

1. Requests for Information

Any individual Board member who desires a copy of an existing written report or survey prepared by the school administrative staff will make such a request to the administrator/principal. A copy of the material may be made available to each member of the HCCS Board. Requests for the generation of reports or information, which requires additional expense to the school, must be submitted to the Board for consideration.

2. Requests for Legal Opinions

A request for a legal opinion by a HCCS Board member, must be approved by a majority vote of the HCCS Board before the request is made to legal counsel. If the legal opinion sought involves the administrator's/principal's employment or performance, the request should be made to the Board chair. Legal counsel is responsible to the HCCS Board.

3. Action on Complaints or Requests Made to Board Members

When HCCS Board members receive complaints or requests for action from staff, students or members of the public, the Board members will direct the staff, students and members of the public

to the complaint policy Board policy KL - Public Complaints. Such information will be conveyed to the administrator/principal.

4. Board Member's Relationship to Administration

Individual HCCS Board members will be informed about the school's educational program, may visit the school or other school facilities to gain information, and may request information from the administrator/principal. No individual Board member may direct the administrator/principal to action without Board authorization. Board members will not intervene in the administration of the school.

5. Contracts or Agreements

All contracts of the HCCS must be approved by the HCCS Board, or as delegated to the administrator/principal, before an order can be drawn for payment. If a contract is made without authority of the Board, the individual making such contract shall be personally liable.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(2\)](#)

Cross Reference(s):

BHD - Board Member Compensation and Expense Reimbursement